

Court No. - 37

Case :- WRIT - C No. - 15220 of 2012

Petitioner :- Prabhawati

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Raj Karan Patel

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Sunil Ambwani,J.

Hon'ble Pankaj Naqvi,J.

Heard learned counsel for the petitioner. Shri Prem Sagar Dubey appears for the respondent nos.4 and 5.

The petitioner is challenging the bill dated 19.1.2012 for Rs.1296.43 and total amount including arrears of Rs.2,18,083/- in the supply of electricity through Meter No.DE8256 for which the petitioner is being billed on an average basis of 104 units, on the meter reading classified with abbreviation "IDF".

It is submitted that the electricity connection is in the name of Pyare Lal Halwai, who has since died and thus the petitioner as his daughter-in-law is not liable to pay the bill. We are unable to appreciate the contention raised by learned counsel for the petitioner. A person, who consumes the electricity is required to pay the bill, failing which the electricity may be disconnected in accordance with the U.P. Electricity Supply Code, 2005. So far as the recovery of the arrears after disconnection is concerned, the Court has held that same may be made from the person, who is a consumer as defined in the Electricity Act, 2003. If the person has died, the recovery has to be initiated against his legal heirs, who have inherited the property of such deceased consumer.

In the present case it is admitted that the petitioner has not paid the bills for consumption of electricity for last many years. The plea taken by her that there is no meter installed and running, and that her father in law died long ago would not entitle her to continue to consume electricity as a consumer without payment of bills.

It will be open to the respondents, if the dues is not paid, to disconnect the electric supply and thereafter to initiate recovery against the legal heirs for the period prior to the death of the recorded consumer.

The petitioner will file supplementary affidavit giving the date on which her father-in-law died. The respondents will file counter affidavit replying to the fact that there is no meter and if the meter is installed, why no reading has been taken for a long time.

List on 17.4.2012.

Order Date :- 28.3.2012/SP/

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Petitioner Counsel :- Raj Karan Patel

Respondent Counsel :- C.S.C.,H.P. Dube,P.S. Dube

Hon'ble Sunil Ambwani,J.

Hon'ble Aditya Nath Mittal,J.

As prayed, put up tomorrow i.e. on 18.04.2012. Learned counsel for the petitioner will inform learned counsel for the respondents about this order, in writing.

Order Date :- 17.4.2012

Kpy

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Petitioner Counsel :- Raj Karan Patel

Respondent Counsel :- C.S.C.,H.P. Dube,P.S. Dube

Hon'ble Sunil Ambwani,J.

Hon'ble Aditya Nath Mittal,J.

Shri H.P. Dube states that the Executive Engineer, Electricity Distribution Division-II, Jaunpur has not given clear instruction to him. He states that though it is admitted that the meter has not been installed, but the bills are being sent regularly. This contradictory stand does not appear to be bonafide.

Let the Executive Engineer, Electricity Distribution Division-II, Jaunpur file his affidavit explaining as to how the bills are being sent with meter reading, when the meter has not been installed, and further as to why the electricity connection was not disconnected, if the bills were pending for years altogether.

List in the additional cause list on **2.5.2012**.

Order Date :- 18.4.2012

RKP

Court No. - 37

Case :- WRIT - C No. - 15220 of 2012

Petitioner :- Prabhawati

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Raj Karan Patel

Respondent Counsel :- C.S.C.,H.P. Dube,P.S. Dube

Hon'ble Sunil Ambwani,J.

Hon'ble Aditya Nath Mittal,J.

List this case in the next cause list.

Order Date :- 2.5.2012

Kpy

Court No. - 38

Case :- WRIT - C No. - 15220 of 2012

Petitioner :- Prabhawati

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Raj Karan Patel

Counsel for Respondent :- C.S.C.,H.P. Dube,P.S. Dube

Hon'ble Ran Vijai Singh,J.

Hon'ble Vinod Kumar Srivastava-III,J.

List correctly showing the name of Sri Mehbob Ahmad, counsel for Electricity Department.

List this case in the next cause list.

Order Date :- 20.3.2017

Ishan

Court No. - 38

Case :- WRIT - C No. - 15220 of 2012

Petitioner :- Prabhawati

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Raj Karan Patel

Counsel for Respondent :- C.S.C.,Mahboob Ahmad,P.S. Dube

Hon'ble Ran Vijai Singh,J.

Hon'ble Vinod Kumar Srivastava-III,J.

Learned counsel for the respondent has sent illness slip. The case is being passed over for the day.

Order Date :- 27.3.2017

Ravi Prakash

Court No. - 38

Case :- WRIT - C No. - 15220 of 2012

Petitioner :- Prabhawati

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Raj Karan Patel

Counsel for Respondent :- C.S.C.,Mahboob Ahmad,P.S. Dube

Hon'ble Ran Vijai Singh,J.

Hon'ble Mukhtar Ahmad,J.

List has been revised. No one appears on behalf of the petitioner to press this writ petition. Shri R.S. Umrao, holding brief of Shri Mahboob Ahmad and learned Standing Counsel appear for the respective respondents.

The writ petition is dismissed for want of prosecution.

Interim order, if any, stands vacated.

Order Date :- 10.1.2018

Amit Mishra